

Subject: LAW

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Module PARLIAMENT AND STATE LEGISLATURE

Component - I - Personal Details

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Component - I (B) Description of Module

Subject Name	Law
Paper Name	Advanced Constitutional Law
Module/ Name/Title	Parliament and State Legislature
Module Id	26
Pre-requisites	Basic understanding of Indian Constitution relating to Parliament and legislative bodies and their powers
Objectives	1) To understand the Union and State Legislatures under Indian Constitution 2) To understand the nature, scope and importance of legislative functions 2) To study various provisions regarding Parliament and State Legislatures as envisaged under the Indian Constitution
Keywords	Government, separation of powers, Parliament, state legislatures, delegated legislation

Component - II

Module 26 : Parliament and State Legislature



Structure:

1. Introduction
2. Indian Constitution and Parliament
3. Legislative procedure
4. Indian Constitution and the State Legislature
- 5.

1. Introduction

British Parliament is the mother of all the parliaments. The unwritten constitution of Britain and its peculiar constitutional evolution has given birth to the concept of parliamentary supremacy. The parliamentary system of government has been adopted by a number of countries, prominent among them are Germany, Italy, Japan, Canada, Australia, Pakistan and India. To understand parliamentary form of government, firstly, the British model is discussed below¹.

The government generally has three distinct powers: executive, legislative and judicial powers. Parliamentary form of government may be described as a form of government wherein the executive branch of the government is elected /chosen from the legislative branch (which is called the parliament in England) and the executive is responsible to the parliament. The parliamentary form of government evolved in England owing to its peculiar constitutional history. Indeed development of this parliamentary form of government is journey from absolute monarchy to a notional monarchy spanning over nine hundred years. British parliament is therefore the mother of all parliaments. The parliamentary form of government has been adopted in a number of countries particularly in those countries which formed part of the British Empire (with the exception of the united nation which parted its ways from the British Empire by declaration of its independence in 1776)².

¹ Hamid Khan & Muhammad Rana, Comparative Constitutional Law (1stedn , new elegant 2008) 171

² *Ibid.*



1.1 Parliamentary system

Although India has followed the common law system, its parliament enjoys supremacy only to the extent provided in the Indian constitution.

1.1.1 Indian Parliamentary System

In India, there is a parliamentary form of government both at center and at the states.

Government at union level	Government at state level
The executive power of the union is vested in the president who exercises his powers and functions with the aid and advice of the council of ministers headed by a prime minister. Article 103 , given one exception - The president has to act according to the opinion of the election commission.	The same is the position of a governor of the state who is required to act as a constitutional head and act according to the advice of his ministers except when he acts in his discretion.

There were many reasons why the framers of the constitution preferred the parliamentary system of government to the presidential system³-

1. The people of India were already familiar with the working of the parliamentary system.
2. A parliamentary system could provide effective leadership in emergencies.
3. Cabinet system ensures harmony between the executive and the legislature.
4. Parliamentary system gives more responsibility. The assessment of the responsibility of the executive is both on daily as well as periodic basis.
5. The members of parliament can make the ministers responsible by putting questions, moving resolutions and no-confidence motions, adjournment motions and debates on address by the President.
6. Elections are held after regular intervals and that gives the voters an opportunity to express their approval or dissatisfaction with the government in power.

In fact federal Parliamentary character of the Indian Constitution has been recognized by the Supreme Court of India as basic structure of constitution.

It is to be noted that, though the Indian Constitution provides for the parliamentary form of government but unlike Britain, the Parliament is not supreme under the Indian Constitution. In India, the constitution is supreme. In England, Laws passed by the Parliament cannot be declared unconstitutional while the Indian Constitution expressly vests this power in the courts.

In *kesavananda Bharti v. State of Kerala*, Chief justice Sikri, writing for majority indicated that the Basic Structure was:

- ^{3V}
- a) The supremacy of the constitution;
 - b) A republican and democratic form of government;
 - c) The secular character of the constitution;



In another case, **Indira Nehru Gandhi v. Raj Narain**⁴ Supreme Court of India struck down the clause (4) of the constitution 39th Amendment Act, 1975 is unconstitutional and void on the ground that it is violated the free and fair elections which was an essential feature forming part of the basic structure of the constitution. The Supreme Court added the following features as “basic structure” to the list of basic features laid down in the *kesavananda*’s case:

- a) Rule of Law
- b) Judicial Review
- c) Sovereign democratic republic status, which implied free and fair election.
- d) Jurisdiction of Supreme Court under Article 32.

In this case as well, by sovereign democratic republic status, the Supreme Court meant the parliamentary democracy.

1.1.2 Pakistan and Japan parliamentary system

Some of its main features are given below⁵ -

s. no	Pakistan parliamentary system	Japan parliamentary system
1.	First constitution of Pakistan come into enforcement in 1956. The Constitution of 1956 was founded on the concept of parliamentary democracy. The present constitution was enacted in 1973 and again introduced parliamentary form of government.	The constitution of Japan also introduced parliamentary form of government.
2.	Prime minister is not an appointee of the president; he is elected by the national assembly. He is designated as chief-executive, who elected for 5 years by parliament in joint session.	The cabinet may hold office as long as it is given confidence by the lower house of Parliament. <i>Diet</i> is the parliament of Japan with two houses, the House of Representatives (lower houses) and the houses of councilors (upper house). The prime –minister has to be member of the <i>diet</i>
3.	Bi-cameral legislature was introduced for the first time in Pakistan. The parliament consists of the senate (having equal representation from each province) as the upper house and the national assembly (with representation on the	Cabinet is collectively responsible to the lower house for the general conduct of affairs, and is concerned with political matters but not legal matters.

⁴[1975]AIR 2299 (SC)

⁵Cf khan (n1) 191.



	basis of population) as the lower house.	
4.	The president has no power to dissolve the national assembly in his discretion. On the dissolution of national assembly, the prime minister would continue in office along with the minister of his choice until the new elections were held to the national assembly. Elections to the national and provincial assemblies were to be held on the basis of joint electorate.	The office of individual minister is not impeachable. The political party in power in the two houses of the diet can nominate the Prime-minister by majority vote.

2. Indian Constitution and Parliament

Indian constitution

- Part v
- Chapter II
- Article 79 to 122

1.1 Composition and functions of Indian Parliament

Indian Parliament shall consist of the President and two Houses to be known respectively as the Council of States and the House of the People. Indian President is not a member of either house of parliament

1.1.1 Composition of the both houses

S.no	Composition of the Council of States (Rajya Sabha)	Composition of the House of the People (Lok Sabha)
1.	The Council of States shall consist of- (a) Twelve members to be nominated by the President (b) Not more than two hundred and thirty-eight representatives of the States and Union territories.	The House of the People shall consist have- (a) Not more than five hundred and thirty members chosen by direct election from territorial constituencies in the States, and (b) Not more than twenty members to represent the Union territories, chosen in such manner as Parliament may by law provide. EXCEPTION – given under Article 331
2.	The representatives of each State in the Council of States shall be elected by the elected members of the Legislative Assembly of the State in accordance with the system of proportional representation by means of the single transferable vote.	For the purpose of allotment of seats to each State. The number of seats in the House of the People should be in such manner that the ratio between that number and the population of the State is, so far as practicable, the same for all States.



3.	The representatives of the Union territories in the Council of States shall be chosen in such manner as Parliament may by law prescribe.	For the allotment of seats in the House of the People to any State, the population of that State does exceed six millions.
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2.1.2 The Upper House under other Constitution – distinguished

Constitution of India	The American Constitution	In England
The upper house is called as <i>council of states</i> , It is also called <i>RajyaSabha</i> .	the upper house is known as <i>senate</i>	it is called <i>House of Lords</i>
The upper house is a permanent house and not subject to dissolution	Senate is a permanent house and not subject to dissolution	The House of lords is a permanent house and not subject to dissolution
One –third of the members of the RajyaSabha retire every second year,	While one-half of American senate retire every two years.	The House of Lords is a body of hereditary peers who are appointed by the crown for life.
While the members of RajyaSabha are elected by indirect election by the elected member of the legislative Assembly of each state.	The members of American senate are elected by a direct election by the popular vote of the people in their states.	The members House of Lords are appointed for life. On death of the peer, his eldest son has to become a peer.
The members of the RajyaSabha enjoy tenure of six years. The allocation of seats to be filled by the representatives from the states in the RajyaSabha is done in proportion to the population of the state.	The members of the American senate enjoy tenure of six years. Each state sends equal representatives (i.e. two).	
Under the Indian Constitution, the president nominates 12 members to the Rajyasabha.	There is no nominated member in the American constitution	

In India there can be **Readjustment even after each census**

It's interesting to know -

Each census the allocation of seats in the house of the peoples and the division of each state into territorial constituencies may have to be readjusted. It is Art. 327 which enjoin upon Parliament to make provision by law from time to time with respect to all the matters relating to or in connection with election to either house of parliamentdelimitation of constituencies and all other matters necessary for securing the due constitution of such house or houses

- Meghraj Kothari v. Delimitation Commission AIR 1967 SC 669



Rajya Sabha is a permanent House. It is not subject to dissolution

Article 84 of Indian constitution giving qualification for the Member of Indian Parliament, they must be—

- a) citizen of India
- b) Age more than 30 years in Rajya Sabha and 25 years in Lok Sabha.
- c) Any other qualification as prescribed by parliament
- d) Taken an oath before person authorized by election commission (as in 3rd schedule).

Article 102 explaining, disqualification such as –

- (a) a person if holds any office of profit under the Government of India or the Government of any State, other than an office declared by Parliament by law not to disqualify its holder
- (b) If he is of unsound mind and stands so declared by a competent court
- (c) If he is an insolvent
- (d) If he is not a citizen of India or has voluntarily acquired the citizenship of a foreign State, or is under any acknowledgment of allegiance or adherence to a foreign State
- (e) If he is so disqualified by or under any law made by Parliament.

Article 103 (1) if any question arises as to whether a member of either House of Parliament has become subject to any of the disqualifications mentioned in clause (1) of article 102, the question shall be referred for the decision of the President and his decision shall be final. Although 103(2) explaining that, before giving any decision on any such question, the President shall obtain the opinion of the Election Commission and shall act according to such opinion.

2.1.4 Office of profit

This term is not defined in constitution of India. Article 102 (1)(a) use this term in negative language. It is like that a person shall disqualify as member of both houses if he holds any office of profit. To disqualify a member 3 things must be proved under this clause⁶ :-

1. He held an office of profit
2. Such office should be under the center or state government
3. Office should be other than an office declared by parliament by law not to disqualify its holder.

In case - *Jaya Bachchan v Union of India*⁷

⁶ V.N Shukla, *constitution of India* (11thedn EBC Publishing 2010)429.

⁷ [2006] 5 SCC 266.



The petitioner who held the office of the chairperson of U.P Film Development Council with entitlement to honorarium and several allowances and perquisites even though the petitioner claimed to have received none, the court held that “where the office carries with it certain emoluments then it will be an office of profit even if the holder of the office chooses not to receive/draw such emoluments.”

2.1.5 Chairman and Deputy Chairman of the Council of States.

- The Vice-President of India shall be ex officio Chairman of the Council of States.
- The Council of States shall choose a member of the Council to be Deputy Chairman as the office of Deputy Chairman becomes vacant.

Article 91 Power of the Deputy Chairman or any other person to perform the duties of the office or to act as Chairman are given.

There can be two situations –

Situation 1
While the office of Chairman is vacant or during any period when the Vice-President is acting as or discharging the functions of, President, the duties of the office of chairman shall be performed by the Deputy Chairman

Situation 2
If the office of Deputy Chairman is also vacant, by such member of the Council of States as the President may appoint for the purpose. During the absence of the Chairman from any sitting of the Council of States the Deputy Chairman or if he is also absent then a person as may be determined by the rules of procedure of the Council or if no such person is present, such other person as may be determined by the Council, shall act as Chairman.

2.1.6 Position of Speaker and Deputy Speaker of the House of the People.

The House of the People shall as soon as may be –

- Choose two members of the House to be respectively Speaker and Deputy Speaker

Article 94 Situation of Vacation, resignation and removal from, the offices of Speaker and Deputy Speaker.

A member holding office as Speaker or Deputy Speaker of the House of the People-

- (a) He shall vacate his office if he ceases to be a member of the House of the People;
- (b) he May at any time, by writing under his hand addressed, if such member is the Speaker, to the Deputy Speaker, and if such member is the Deputy Speaker, to the Speaker, resign his office.

(c) heMay be removed from his office by a resolution of the House of the People passed by a majority of all the then members of the House.

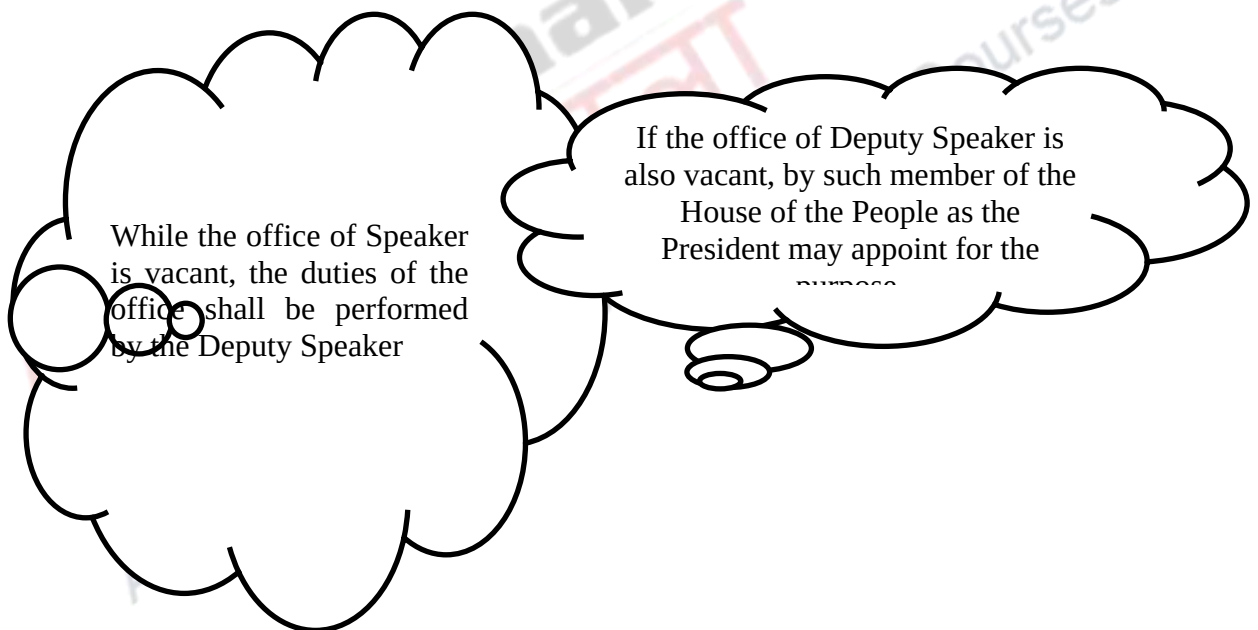
It is to be noted that no resolution for the purpose of article 94 clause (c) shall be moved unless at least fourteen days' notice has been given of the intention to move the resolution.

If the House of the People is dissolved, the Speaker shall not vacate his office until immediately before the first meeting of the House of the People after the dissolution.



2.1.7 Power of the Deputy Speaker or other person to perform the duties of the office, or to act as, Speaker⁸

During the absence of the Speaker from any sitting of the House of the People the Deputy Speaker or, if he is also absent, such person as may be determined by the rules



of procedure of the House, or, if no such person is present, such other person as may be determined by the House, shall act as Speaker.

3. Legislative procedure

⁸ Article 95



The most important function of the parliament is the making of the laws. The Legislative procedure is initiated in the form of a Bill.

3.5 Australian legislative procedure system.

Once a bill is introduced into parliament it must pass through several stages and check before it becomes legislation.

Step 1 this process begins with the drafting of a bill

Step 2 Bill must pass by both Houses to become law.

Step 3 Bills originate in the House of Representatives, once they have passed the bill then transported bill to the Senate, where the above process is completed. The Senate may block the bill or suggest amendments⁹.

Step 4 the final stage in the legislative process is the granting of royal assent by the Governor-General, who declares it to be law "...in the name of Her Majesty".

This procedure ends with the granting of royal assent, public proclamation and enactment. All new legislation is formally announced in the Government Gazette, along with the date on which it comes into effect this is known as proclamation. The legislation becomes law on the specified date, when it is considered to have been enacted¹⁰.

3.6 Indian legislative procedure system.

3.2.1 The classification of bills

a) Ordinary Bill

An Ordinary Bill i.e. bill other than money bill and financial bill may originate in either House of the Parliament.

Article 107 clauses (1) and (2) indicates the respective roles of the two Houses in the law making process. The constitution does not confer the same powers on both houses.

The powers of the council of states are restricted in two ways-

Firstly, it has no power to initiate money or financial Bills

Secondly, its consent is dispensed with in case of money Bills. Other Bills, even if not consented to by the council of states, may become laws if passed at a joint sitting in which the member of the house of the people numerically dominate.

⁹In practice a lot of negotiation about amendments occurs 'behind the scenes' between the government, the opposition, minor parties and independent MPs, to avoid the blocking or failure of bills.

¹⁰Lawgovpol , <<http://lawgovpol.com/how-does-a-bill-become-law/>> accessed 21 April 2014



b) Money Bill

Article 110 Defines Money Bill

In fact a Bill shall not be deemed to be a Money Bill by reason only that it provides for the imposition of fines or other pecuniary penalties, or for the demand or payment of fees for licenses or fees for services rendered.

If any question arises whether a Bill is a Money Bill or not, the decision of the Speaker of the House of the People thereon shall be final.

A money bill can only be introduced in the loksabha.

Procedure for money bill

Step 1 A Money Bill shall not be introduced in the Council of States.

Step 2 in fact After a Money Bill has been passed by the House of the People it shall be transmitted to the Council of States for its recommendations.

Step 3 Council of States shall within a period of fourteen days from the date of its receipt of the Bill return the Bill to the House of the People with its recommendations and the House of the People may thereupon either accept or reject all or any of the recommendations of the Council of States.

Step 4 if the House of the People accepts any of the recommendations of the Council of States, the Money Bill shall be deemed to have been passed by both Houses with the amendments recommended by the Council of States and accepted by the House of the People.

Although, if the House of the People does not accept any of the recommendations of the Council of States, the Money Bill shall be deemed to have been passed by both Houses in the form in which it was passed by the House of the People without any of the amendments recommended by the Council of States and if a Money Bill passed by the House of the People and transmitted to the Council of States for its recommendations is not returned to the House of the People within the said period of fourteen days, it shall be deemed to have been passed by both Houses at the expiration of the said period in the form in which it was passed by the House of the People.

3.2.2 Joint session of both Houses

Article 108 clause (5)

A joint sitting may be held under this article and a Bill passed thereat, notwithstanding that dissolution of the House of the People has intervened since the President notified his intention to summon the Houses to meet therein.



President's Assent to Bills.

No Bill can become law without the assent of the president even if it has been passed by both Houses of Parliament. Article 111 says that When a Bill has been passed by the Houses of Parliament, it shall be presented to the President, and the President shall declare either that he assents to the Bill, or that he withholds assent therefrom. President may, as soon as possible after the presentation to him of a Bill for assent, return the Bill if it is not a Money Bill to the Houses with a message requesting that they will reconsider the Bill or any specified provisions thereof and, in particular, will consider the desirability of introducing any such amendments as he may recommend in his message, and when a Bill is so returned, the Houses shall reconsider the Bill accordingly, and if the Bill is passed again by the Houses with or without amendment and presented to the President for assent, the President shall not withhold assent therefrom.

Article 105 of Indian constitution deals with privileges given to union parliament and their member's and committees. Article 194 is exact reproduction of Article 105, deals with stateparliament and their members¹¹. Parliamentary privilege is the name for sum total of certain powers, privileges and immunities. They are enjoyed by each house of the legislature collectively and by members thereof individually. They are regarded absolutely necessary to secure the proper discharge of their functions and are peculiar to them only because they are not possessed by other bodies or individuals¹². Article 105 define parliamentary privileges as¹³-

Clause 1 – freedom of speech in parliament

Clause 2 – freedom of publication of proceedings

Clause 3¹⁴- power, privileges and immunities shall be those of the house of commons of the United Kingdom at the commencement of the constitution until they were defined by an Act of Parliament¹⁵

In case: *M.S.M. Sharma v Sri Krishna sinha*¹⁶

Supreme Court here interpret the words contain under clause (1) of Article 105 “regulating the procedure of parliament”. It should be read as covering the both “the provisions of the constitution” and “the rules and standing orders”. Freedom of speech in parliament becomes subject to the provisions of the constitution relating to the procedure of Parliament, i.e subject to the articles relating to procedure in part v including Articles 107 and 121.

3.3.2 Parliamentary privilege In the United Kingdom

Parliamentary privileges of each house of parliament form a part of the common law technically called the *lexetconsuetudo parliamenti*. This law of parliament is only to be collected “out of the ancient rolls of parliament and other records, and by precedents and continual experience.”¹⁷

¹¹Cfshukla (n 7) 438.

¹²Dr. Shanti Swaroop Singh, ‘The need of codification of parliamentary privileges’(2012)vol.99 All India Reporter161

¹³Cfshukla (n7) 438.

¹⁴ Before its amendment in 1978

¹⁵ After amendment 1978, there is change in wordings but effect on the position is same.

¹⁶ [1959] AIR 395 (SC).

¹⁷Cfsingh (n12) 161.



Sir William Blackstone also stood for not defining parliamentary privileges by law when he said, “ifall the privileges of parliament were once to be set down and ascertained, and no privilege to be allowed but what was so defined and determined, it were easy for the executive power to devise some new case, not within the line of privilege, and under Pretence thereof to harass any refractory member and violate the freedom of parliament. The dignity and independence of the two houses are therefore in great measure preserved by keeping their privileges indefinite.”¹⁸

3.3.3 The principal privileges in United Kingdom

The principal individual privileges are freedom of speech in parliament and freedom of members from arrest in civil matters. The collective privileges of parliament include the exclusive right to regulate composition and procedure, right of access to the sovereign, the right to the ‘favourable construction’ by the sovereign in relation to its actions. Principle privileges are given below-¹⁹

1. Freedom from arrest
2. Freedom of speech

3.7.2 Breach of privilege and contempt of parliament in United Nations

The main types of contempt dealt with by the House of Commons are listed by Erskine May as being²⁰:

1. Misconduct in the presence of the house.
2. Disobedience to rules or orders of the House.
3. Constructive contempt i.e willful misrepresentation of debates
4. Obstructing members in the discharge of their duty.

4. Indian Constitution and the State Legislature

The constitution provides for a legislature for every state. However the question as to whether the state legislature shall be unicameral (having one house only) or bicameral (having two houses), is left for each state to decide for itself. In India only the states Andhra Pradesh, Jammu and Kashmir, Bihar, Maharashtra, Karnataka and Uttar Pradesh, the legislature has two houses and in the rest of the states, there is only one house of the legislature.

Article 170, Subject to the provisions of article

the Legislative Assembly of each State shall consist of maximum five hundred, and minimum sixty, those members chosen by direct election from territorial constituencies in the State, for this purposes each State shall be divided into territorial constituencies in such manner that the ratio between the population of each constituency and the number of seats allotted to it shall, so far as practicable, be the same throughout the State

¹⁸ Ibid

¹⁹ Hilaire Barnett, *Constitutional & Administrative law* (4th edn, Cavendish publishing 2003) 551.

²⁰ Ibid



Article 171

Composition of the Legislative Councils

Here the State having such a Council shall not exceed one third of the total number of members in the Legislative Assembly of that State. Here to be noted that the total number of members in the Legislative Council of a State shall in no case be less than forty.

1.2 State Legislatures

Now, the question arises about duration of state legislature

And answer is -

Every Legislative Assembly of every State, unless sooner dissolved, shall continue for five years from the date appointed for its first meeting and no longer and the expiration of the said period of five years shall operate as dissolution of the Assembly

shall not intervene between its last sitting in one session and the date appointed for its first sitting in the next session.

- ❖ The Governor may from time to time prorogue the House or either House or Dissolve the Legislative Assembly.

According to Article 176

Special address by the Governor, at the commencement of the first session after each general election to the Legislative Assembly and at the commencement of the first session of each year, the Governor shall address the Legislative Assembly or, in the case of a State having a Legislative Council, both Houses assembled together and inform the Legislature of the causes of its summons.

~~his removal from office is under consideration.~~

The Speaker shall have the right to speak in, and otherwise to take part in the proceedings of, the Legislative Assembly when any resolution for his removal from office is under consideration in the Assembly.

Under article 189 all questions at any sitting of a House of the Legislature of a State shall be determined by a majority of votes of the members present and voting, other than the Speaker or Chairman, or person acting as such. The Speaker or Chairman, or person acting as such, shall not vote in the first instance, but shall have and exercise a casting vote in the case of an equality of votes.

4.4 Disqualifications for state legislature membership

A person shall be disqualified for being chosen as, and for being, a member of the Legislative Assembly or Legislative Council of a State-

- If he holds any office of profit under the Government of India or the Government of any State specified in the First Schedule, other than an office declared by the Legislature of the State by law not to disqualify its holder
- If he is of unsound mind and stands so declared by a competent court
- If he is an insolvent
- If he is not a citizen of India, or has voluntarily acquired the citizenship of a foreign State, or is under any acknowledgment of allegiance or adherence to a foreign State



(e) If he is so disqualified by or under any law made by Parliament.

If any question arises as to whether a member of a House of the Legislature of a State has become subject to any of the disqualifications mentioned in article 191

Then this question shall be referred for the decision of the Governor and his decision shall be final. Before giving any decision on any such question, the Governor shall obtain the opinion of the Election Commission and shall act according to such opinion (**acc. to Article 192**).

4.5 Procedure to introduce and pass Bills in India

Step 1

A Bill may originate in either House of the Legislature of a State which has a Legislative Council.

Article 196 explains how to introduction and passing of Bills. Subject to the provisions of articles 198 and 207 with respect to Money Bills and other financial Bills

Step 2

A Bill shall not be deemed to have been passed by the Houses of the Legislature of a State having a Legislative Council unless it has been agreed to by both Houses, either without amendment or with such amendment only as are agreed to by both Houses.

It is Subject to the provisions of articles 197 and articles 198

Point to be considered

- a) A Bill pending in the Legislature of a State **shall not lapse** by reason of the prorogation of the House or Houses thereof.
- b) A Bill pending in the Legislative Council of a State which has not been passed by the Legislative Assembly **shall not lapse** on dissolution of the Assembly.
- c) A Bill which is pending in the Legislative Assembly of a State, or which having been passed by the Legislative Assembly is pending in the Legislative Council, **shall lapse on** a dissolution of the Assembly.

4.6 Procedure to introduce and pass money Bills in India

Article 198 explains Special procedure in respect of Money Bills in state legislature. A Money Bill shall not be introduced in a Legislative Council. Article 199 Define "Money Bills".

Step 1 After a Money Bill has been passed by the Legislative Assembly of a State having a Legislative Council; it shall be transmitted to the Legislative Council for its recommendations

Step 2 The Legislative Council shall within a period of fourteen days from the date of its receipt of the Bill return the Bill to the Legislative Assembly with its recommendation.



Step 3 The Legislative Assembly may thereupon either accept or reject all or any of the recommendations of the Legislative Council.

Step 4 If the legislative Assembly accepts any of the recommendations of the Legislative Council, the Money Bill **shall be deemed to have been passed** by both Houses with the amendments recommended by the Legislative Council and accepted by the Legislative Assembly.

Or

If the Legislative Assembly does not accept any of the recommendations of the Legislative Council, the Money Bill **shall be deemed to have been passed** by both Houses in the form in which it was passed by the Legislative Assembly without any of the amendments recommended by the Legislative Council.

Step 5 If a Money Bill passed by the Legislative Assembly and transmitted to the Legislative Council for its recommendations is not returned to the Legislative Assembly within the said period of fourteen days, it shall be deemed to have been passed by both Houses at the expiration of the said period in the form in which it was passed by the Legislative Assembly.

4.6.1 Assent to Bill in state legislature

According to Article 200 –

Step 1 When a Bill has been passed by the Legislative Assembly of a State or, in the case of a State having a Legislative Council, has been passed by both Houses of the Legislature of the State,

Step 2 then it shall be presented to the Governor and the Governor shall declare either that he assents to the Bill or that he withholds assent therefrom or that he reserves the Bill for the consideration of the President.

Step 3 Governor after the presentation to him of the Bill for assent, return the Bill if it is not a Money Bill together with a message requesting that the House or Houses will reconsider the Bill or any specified provisions thereof and, in particular, will consider the desirability of introducing any such amendments as he may recommend in his message.

Step 4 when a Bill is so returned, the House or Houses shall reconsider the Bill accordingly, and if the Bill is passed again by the House or Houses with or without amendment and presented to the Governor for assent, the Governor shall not withhold assent therefrom.

4.6.2 Bills reserved for consideration.

When a Bill is reserved by a Governor for the consideration of the President, the President shall declare either-

Or

He assents to the Bill

He withholds
assent

Article 208(1) provides that a house of the legislature of a state may make rules for regulating, subject to the provisions of this constitution, its procedure and the conduct of its business. This provision makes it perfectly clear that if the house wants to make any rules as prescribed by it; those rules would be subject to the fundamental rights guaranteed by part III.

Let us Sum Up

In recent years, we have seen an important development in the working of Indian federalism. No single national political party has been able to secure absolute majority



in the Parliament to form the government independently. Various regional and local political parties have been emerging and playing crucial role in the formation of coalition governments at the Centre. This development to some extent has changed the face of Indian federalism. However, India has been continuing with a strong Central government. But, it is hoped that Coalition politics will enable Indian federalism to bring about some positive changes in the Center-State relations, particularly, in the use of Article 356 by the Central government, role of the Governor in a State and the distribution of financial powers between the two governments. These are some of the issues which have been constraining Centre-State relations from the very beginning²¹.



²¹ Ref : <http://www.kkhsou.in/main/polscience/indian_federalism.html> (accessed on 12 may 2014)